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Case Number: 25CHCV04349 Hearing Date: September 22, 2026 Dept: F43

Dept. F43

Hearing Date: 09-22-26

Case # 25CHCV04349, Urbn US

Retail, LLC v. Centennial VTC, LLC

Trial Date: 06-04-29

MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR ADMISSION

MOVING PARTY:

Defendant/Cross-Complainant Centennial VTC, LLC

RESPONDING PARTY: Plaintiff/Cross-Defendant Urbn US Retail, LLC

RELIEF REQUESTED

Order compelling plaintiff/cross-defendant to
serve further objection-free responses to defendant/cross-complainant's first
set of requests for admission numbers 1 through 36 and genuineness of documents
number 1-4 within ten (10) days of the court's order.

RULING: Motion is granted in part and denied in
part. Urbn's request for sanctions is
denied.

SUMMARY OF ACTION

On December 5, 2025, plaintiff Urbn US Retail, LLC (Urbn) filed this action, contending defendant Centennial VTC, LLC (Centennial) breached two written retail lease agreements. Urbn leases retail space from Centennial at the Valencia Town Center mall for its brands Urban Outfitters and Anthropologie. The lease agreements were executed with third party Valencia Town Center Venture, L.P. on October 21, 2020 and January 23, 2020, respectively. On September 1, 2023, Centennial purchased the leased spaces and assumed the leases as landlord pursuant to Section 46 of the lease agreements. According to Section 17 of the lease agreements, Urban made the tenant improvements, opened both stores, and has performed all contractual obligations required of it. However, Centennial has failed and refused to pay for the tenant improvements (Tenant Improvement Allowances), as required under each lease, and Urbn seeks \$3,222,329.16, as of November 2025. Centennial filed an answer on February 9, 2026.

On February 10, 2026, Centennial filed a cross-complaint against Urbn, asserting breaches of the lease agreements and declaratory relief. Centennial alleges Urbn did not seek to enforce the lease agreements with respect to the original landlord's delinquent failure to pay for the improvements until August 1, 2024 (Anthropologie Lease) and March 1, 2025 (Urban Outfitters Lease), when Urban stopped paying rent. However, when Centennial assumed the obligations of the original landlord, it did not assume the obligation to pay the Tenant Improvement Allowances.

On May 30, 2025, Urbn filed an action against Centennial in the U.S. District Court for the Central District of California based on failure to pay the Tenant Improvement Allowances. The action was subsequently dismissed due to lack of subject matter jurisdiction. As such, Urbn is obligated to pay a total of \$968,745.21 in past due rent. Urbn filed an answer on March 17, 2026.

On May 1, 2026, Centennial electronically served Urbn with its first set of requests for admissions. (Declaration of Julia B. Glazer ¶ 2 [36 requests for admission and 4 requests for admission of genuineness of documents].) Responses were due June 2, 2026. On May 25, 2026, Urban's counsel, Holly Heffner, requested an extension to June 30, 2026, due to being out of the

country from June 1 through 18, 2026. (Id.,

Exh. A at p. 3.) After speaking by

telephone, counsel agreed to a 10-day extension, June 12, 2026. (Id., Exh. A at p. 2.) No responses were served by June 12, 2026.

On June 18, 2026, Centennial's counsel stated

that no motion to compel would be filed if Urbn served verified, objection-free

responses by close of business on June 19, 2026. (Glazer Decl., Exh. A at p. 2.) If verified responses containing objections

were served by close of business on June 19, 2026, Centennial would file a

motion to deem the matters in the requests for admission as admitted and seek

sanctions. (Id., Exh. A at p.

2.) Urbn's counsel responded that same

day, stating there was a miscommunication on their end, that it was impossible

to meet the June 19, 2026, deadline, and requested an extension to serve the

responses by end of day on Tuesday, June 23, 2026. (Id., Exh. A at p. 1.) Centennial's counsel responded "yes," agreeing

to extend the deadline to June 23, 2026.

(Id., Exh. A at p. 1.) On

June 23, 2026, Urbn electronically served its responses which included

admissions, denials, and objections. (Id.,

Exh. B.)

On June 24, 2026, Centennial's counsel called

Urbn's counsel and left a voicemail concerning issues with the responses but

did not receive a call back. (Glazer

Decl., Exh. D at pp. 5-6.) On June 25,

2026, Centennial served a "meet and confer" letter, representing that after the

deadline passed its counsel had notified Urbn's counsel that the matters in the

requests for admission were deemed admitted by operation of law but would allow

Urbn to avoid a motion to deem the requests admitted if Urbn served objection-free

responses by end of day on June 19, 2026.

(Id., Exh. C at pp. 1-2.)

As such, Centennial insisted the responses were untimely, that Urbn had

waived its objections, and that the substantive responses contradicted Urbn's

own pleadings. (Id., Exh. C at

pp. 2-4.) Centennial requested that Urbn

serve amended objection-free responses with straightforward denials within five

days, June 30, 2026. Urbn's counsel

emailed a response to the "meet and confer" letter on June 30, 2026, discussing

its counsel's interpretation of the agreement. (Id., Exh. D at pp. 1-5.) No amended responses were served.

On August 10, 2026, Centennial filed the instant motion to compel Urbn's further objection-free responses to requests for admissions number 1-36 and request for genuineness of documents numbers 1-4 pursuant to Code of Civil Procedure sections 2033.290 and 2033.280, subdivision (a). Centennial filed its separate statement on August 11, 2026, but filed an amended declaration on August 12, 2026. The court does not consider the amended declaration because it was filed after the August 11, 2026 deadline. The court notes that Centennial did not serve Urbn with its moving papers and amended declaration until August 12, 2026, after the August 11, 2026, deadline. Because Urbn was able to file a timely opposition and response to Centennial's separate statement, the court still considers the motion.

Urbn filed an opposition on September 9, 2026, and a notice errata on September 17, 2026.

Centennial filed a reply on September 15, 2026.

MEET AND CONFER

Motions to compel further responses to requests for admission must include a declaration stating facts showing a "reasonable and good faith attempt" to resolve the issues mentioned in the motion before filing. (Code Civ. Proc., §§ 2016.040, 2033.290, subd. (b)(1).) In Department F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

The moving papers indicate Centennial's counsel called Urbn's counsel on June 24, 2026, and sent a follow-up letter discussing issues with Urbn's responses. However, counsel did not come to an agreement concerning whether the responses should include objections.

ANALYSIS

A. Compel

Further Responses to Requests for Admissions and the Genuineness of Documents

Where responses to requests for admission have been served but the demanding party believes the responses are evasive or incomplete or an objection lacks merit, the demanding party may move for an order compelling a further response. (Code Civ. Proc., § 2033.290, subd. (a).) The demanding party must serve the motion within 45 days after service of verified responses in question, or any verified supplemental responses, or any specific later date which the parties agreed to in writing. (Code Civ. Proc., § 2033.290, subd. (c).) Where a motion to compel further challenges both objections and factual responses, the 45-day deadline begins to run from service of verifications. (Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 134-137.) Otherwise, the requesting party waives the right to compel further responses to requests for admission. (See Sperber v. Robinson (1994) 26 Cal.App.4th 736, 745; Sexton v. Superior Court (1997) 48 Cal.App.4th 1403, 1410.)

1. Although

Urbn automatically waived all objections by operation of law, by serving responses after the agreed upon June 12, 2026, deadline extension, Centennial did not file a motion to deem the matters in the requests for admission as true and admitted before Urbn served its late responses.

Centennial contends the objections are without merit because they were waived by operation of law when Urbn served the responses after the June 12, 2026, deadline extension and asserts the parties agreed to objection-free responses thereafter. (Mot. at pp. 5:19-7:15 [citing Code Civ. Proc., § 2033.280].)

“If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.] The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230 [and]

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., § 2033.280, subd. (a)(1)-(2).)

Based on Urbn's failure to serve responses by the June 12, 2026, deadline, Urbn automatically waived all objections by operation of law. The language in Centennial's June 18, 2026, email, represents that Centennial would file a motion to deem the matters in the requests for admission as admitted if Urbn served verified responses with objections. (Glazer Decl., Exh. A at p. 2.) However, Centennial never filed such a motion, and Urbn subsequently served responses containing both objections and substantive responses before Centennial filed its motion, with the exception of Request Number 36, which is an objection-only response.

Although asserting waived objections in untimely responses to requests for admission does not prevent substantial compliance with Code of Civil Procedure section 2033.220, subdivision (c), no motion to deem admitted was filed. (See *Katayma v. Continental Investment Grp.* (2024) 105 Cal.App.5th 898, 909.) By waiting until after Urbn served its responses to file the instant motion, Centennial must rely on the distinct framework in Section 2033.290 to address the objections. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 782-784.) Centennial cannot rely on Section 2033.280's objection waiver to demonstrate the objections lack merit. Thus, the motion fails to the extent it seeks relief based on waiver of objection

2.
Centennial's motion to compel further is granted in part.

Centennial seeks further responses to request for admission numbers 1 through 36 and request for genuineness of documents numbers 1 through 4, contending Urbn's objections lack merit. (Mot. at pp. 7:17-10:10 [citing Code Civ. Proc., § 2033.220, subs. (a), (b)(1)].)

The responding party must answer each request for admission separately with (1) an admission, (2) a denial, or (3) a statement claiming an inability to admit or deny and explaining the reasons

why. (Code Civ. Proc., § 2033.220, subd.

(b).) If the responding party gives lack

of information or knowledge as a reason for failure to admit all or part of a request, the responding party must state in the answer that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ.

Proc., § 2033.220, subd. (c).) The

responding party has a reasonable duty to investigate the facts before answering items that fall outside the party’s personal knowledge. (Bloxham v. Saldinger (2014) 228 Cal.App.4th 729, 752.)

Request

for Admission Nos. 1 and 2

Request numbers 1 and 2 ask whether the original landlord under the Anthropologie and Urban Outfitters leases, paid Urbn any portion of the Tenant Improvement Allowance prior to September 1, 2023.

In response, Urbn objects based on overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible; overly broad, uncertain, and included unidentified third parties; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; and lacking foundation.

Each of these objections lack merit because the request includes definitions defining specific parties and documents, the request is relevant to determining whether Centennial had a valid basis for not paying rent (Urbn and the prior landlord did not pay Centennial the tenant improvement allowance), and the requests simply ask whether Urbn has personal knowledge about specific payments. Thus, the court overrules each of these objections.

As for the attorney-client privilege and attorney-work product doctrine, the court is unclear how the requests seek information concerning confidential attorney-client communications or attorney legal reasoning, through processes, or strategy.

Thus, the court also overrules these objections.

Finally, Urbn provides the following improper substantive response to each request: "Admit Valencia Town Center Venture, L.P. did not pay the Anthropologie TIA; deny Valencia Town Center Venture, L.P. was obligated to pay prior to September 1, 2023." and "Admit Valencia Town Center Venture, L.P. did not pay the Urban Outfitters TIA; deny Valencia Town Center Venture, L.P. was obligated to pay prior to September 1, 2023."

The "denial" in each response is unnecessary because the request did not ask Urbn to admit or deny that Valencia Town Center Venture, L.P. was obligated to pay prior to September 1, 2023.

Thus, the court grants Centennial's motion to compel further as to the Requests for Admission Nos. 1 and 2.

Request
for Admission Nos. 3 and 4

Request number 3 asks Urbn to admit the first half of the Anthropologie tenant improvement allowance (\$786,620) became due on or before July 2, 2020. Request number 4 asks Urbn to admit the second half of the Anthropologie tenant improvement allowance (\$786,620) became due on or before December 5, 2020.

Urbn objects to both requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine. Urbn also denies both requests.

As with requests numbers 1 and 2, the court finds that objections lack merit. Whether the improvement allowance amount because due on specific dates is relevant to determining whether Centennial, Urbn, or the prior landlord breached the leases. As for the lack of foundation objection, the request seeks information which is directly relevant to the parties' allegations in their complaint and cross-complaint concerning their rights to rent payment or tenant improvement allowances. As for the attorney-client privilege and attorney-work product doctrine, the court is unclear how the requests seek information concerning confidential attorney-client communications or attorney

legal reasoning, through processes, or strategy. Thus, the court overrules all objections.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 3 and 4.

Request
for Admission Nos. 5 and 6

Request number 5 asks Urbn to admit the first half of the Urban Outfitters tenant improvement allowance (\$656,250) became due on or before June 21, 2022. Request number 6 asks Urbn to admit the second half of the Anthropologie tenant improvement allowance (\$656,250) became due on or before December 9, 2021.

Urbn objects to both requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine. Urbn also denies both requests.

For the reasons stated above as to request numbers 3 and 4, the court overrules each objection to request numbers 5 and 6.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 5 and 6.

Request
for Admission Nos. 7 and 8

Requests numbers 7 and 8 ask Urbn to admit it did not file a lawsuit against the original landlord, Valencia Town Center Venture, L.P., seeking payment of the Anthropologie and Urban Outfitters tenant improvement allowances before September 1, 2023.

Urbn objects to both requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible; overly broad, uncertain, and included unidentified third parties; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney

work-production doctrine.

For the reasons stated for request numbers 1 through 6, the court finds the objections lack merit with the exception of the attorney-client privilege and attorney-work-product objections. If Urbn believes these requests seek disclosure of information, documents, or communications which are protected by the attorney-client privilege or the work-product doctrine, Urbn must produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116.

Finally, Urbn also admits it did not file a lawsuit against the original landlord for the Anthropologie and Urban Outfitters tenant improvement allowances, and denies the original landlord was obligation to pay the allowances before September 1, 2023.

The additional text after the "Admit" and the denial are improper responses because the request does not ask whether the original landlord was obligated to pay the allowances.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 7 and 8.

Request
for Admission Nos. 9 and 10

Request numbers 9 and 10 asks Urbn to admit it did not file any lawsuits against Centennial seeking payment of the Anthropologie and Urban Outfitters tenant improvement allowances until Urbn filed federal Case No. 2:25-cv-04936 on May 30, 2026.

Urbn objects to both requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible; overly broad, uncertain, and included unidentified third parties; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine. Urbn also admits both requests.

For the reasons stated for request numbers 7 and 8, the court finds the objections lack merit with the exception of the attorney-client

privilege and attorney-work-product objections.

If Urbn believes these requests seek disclosure of information, documents, or communications which are protected by the attorney-client privilege or the work-product doctrine, Urbn must produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 9 and 10.

Request
for Admission Nos. 11 and 12

Request number 11 asks Urbn to admit that it did not exercise its right to offset under Section 23 of the Anthropologie lease prior to August of 2024. Request number 12 asks Urbn to admit that it did not exercise its right to offset under Section 23 of the Urban Outfitters lease prior to March of 2025.

Urbn objects to both requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible; overly broad, uncertain, and included unidentified third parties; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine. Urbn also denies both requests.

For the reasons stated above as to request numbers 1 and 2, the court overrules all objections.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 11 and 12.

Request
for Admission Nos. 13 and 14

Request number 13 asks Urbn to admit that it paid all rent due and owing under the Anthropologie lease from the commencement of the lease term through July of 2024. Request

number 14 asks Urbn to admit that it paid all rent due and owing under the Urban Outfitters lease from the commencement of the lease term through February of 2025.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible; overly broad, uncertain, and included unidentified third parties; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine. Urbn also includes the following substantive response:

“Admit Responding Party has paid all rent due and owing at all times but began contractual right to offset rent on February 1, 2024.”

The court finds the objections lack merit and overrules them all.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 13 and 14.

Request
for Admission No. 15

Request number 15 asks Urbn to admit that the Assignment and Assumption Agreement dated September 1, 2023, states the assignee “assumes all obligations of Assignor as landlord, lessor, sublandlord, licensor or sublicensor set forth in writing in the LEASES first arising after the date hereof.”

Urbn objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine.

Urbn also states it cannot admit or deny the authenticity of the Assignment and Assumption Agreement the Centennial's counsel emailed to Urbn's counsel on August 28, 2025. However, Urbn does admit the document that was sent by Centennial's

counsel states "Assignee hereby assumes all obligations of Assignor as landlord, lessor, sublandlord, licensor or sublicensor set forth in writing in the LEASES first arising after the date hereof."

The court overrules the objections due to being boilerplate and lacking merit.

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 15.

Request
for Admission Nos. 16 and 17

Request number 16 asks Urbn to admit the obligation to pay the first half of the Anthropologie tenant improvement allowance first arose on or before July 2, 2020. Request number 17 asks Urbn to admit the obligation to pay the second half of the Anthropologie tenant improvement allowance first arose on or before December 11, 2020.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible; as to the terms "obligation" and "first arose"; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine. Urbn also denies both requests.

The court finds the objections lack merit. The term "obligation" as used in the context of the request and this action refers to a "duty" concerning payment of the improvement allowance. The phrase "first arose" as used in this context refers to the point in time when the obligation commenced. Thus, the court overrules all objections due to lack of merit.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 16 and 17.

Request for
Admission Nos. 18 and 19

Request number 18 asks Urbn to admit the obligation to

pay the first half of the Urban Outfitter tenant improvement allowance first arose on or before June 29, 2021.

Request number 19 asks Urbn to admit the obligation to pay the second half of the Urban Outfitter tenant improvement allowance first arose on or before December 23, 2021.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible; as to the terms “obligation” and “first arose”; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lacking foundation; and attorney-client privilege and attorney work-production doctrine. Urbn also denies both requests.

For the reasons stated in responses to request numbers 16 and 17, the court overrules the objections.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 18 and 19.

Request
for Admission No. 20

Request number 20 asks Urbn to admit the California statute of limitations for breach of a written contract is four years pursuant to Code of Civil Procedure section 337.

Urbn objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine. Urbn also admits the request.

The court finds the objections lack merit, considering both parties allege breaches of contract.
Thus, the court overrules the objections

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 20.

Request

for Admission Nos. 21 and 22

Request number 21 asks Urbn to admit that four years from July 2, 2020 (the date Centennial claims the first half of the Anthropologie tenant improvement allowance became due) is July 2, 2024. Request number 22 asks Urbn to admit that four years from December 11, 2020 (the date Centennial claims the second half of the Anthropologie tenant improvement allowance became due) is December 11, 2024.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague and ambiguous; compound; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lack of foundation and assumes facts not in evidence; and attorney-client privilege and attorney work-production doctrine.

Urbn also denies the requests in part as to Centennial's contentions concerning when amounts became due and admits the requests as to the four-year calculations.

The court finds the objections lack merit and overrules each of them.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 21 and 22.

Request

for Admission No. 23

Request number 23 asks Urbn to admit that four years from June 29, 2021 (the date Centennial claims the first half of the Urban Outfitters tenant improvement allowance became due) is June 29, 2025.

Urbn objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague and ambiguous; compound; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; lack of foundation and assumes facts not in evidence; and attorney-client privilege and attorney work-production doctrine. Urbn also denies the request in part as to

Centennial's contentions concerning when the amount became due and admits the request as to the four-year calculations.

The court finds the objections lack merit and overrules each of them.

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 23.

Request
for Admission No. 24

Request No. 24 asks Urbn to admit it did not file this action until December 5, 2025.

Urbn objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and totally unintelligible especially as to the definition of YOU which is overly broad, uncertain, and includes unidentified third parties – to be clear, these responses are on behalf of Plaintiff/Cross-Defendant URBN US Retail LLC and no other person, entity, or other third party; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine.

The court overrules also objections.

Urbn also admits the filing date but denies “the statute of limitations ran prior to that date as to any of the claims asserted against [Centennial].” Urbn's denial is improper because the request does not ask Urban to admit or deny whether the statute of limitations ran prior to the December 5, 2025, date concerning Urban's claims against Centennial.

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 24.

Request
for Admission No. 25

Request No. 25 asks Urbn to admit that Section 21 of the Anthropologie and Urban Outfitters leases provide that it shall be an "Event of Default" if "Tenant fails to pay any installment of Rent which is due and payable hereunder by Tenant and such failure continues for a period of ten (10) days after Tenant's receipt of notice thereof from LANDLORD."

Urbn objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine.

The court overrules the objections due to lack of merit.

Urban also responds to the request as follows: "Deny Request for Admission No. 25 quotes the entirety of Section 21 of the subject leases and further deny that Responding Party is in default under either lease; admit Request for Admission No. 25 quotes a part of Section 21."

The denial concerning whether Urbn is in default is improper because the request does not ask whether Urbn is in default under the lease.

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 25.

Request
for Admission Nos. 26 and 27

Request No. 26 asks Urbn to admit that Centennial served Urbn with a demand letter dated January 23, 2026, demanding payment of \$711,822.41 in past due rent under the Anthropologie lease. Request No. 27 asks Urbn to admit that Centennial served Urbn with a demand letter dated January 23, 2026, demanding payment of \$256,922.80 in past due rent under the Urban Outfitters lease.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible as to the definition of You which is overly broad, uncertain, and includes unidentified third parties; seeking irrelevant information not reasonably calculated to lead to

discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine.

The court overrules the objections due to lack of merit. The request merely asks Urbn to admit it has personal knowledge of receiving letters on the stated dates seeking the stated rent amounts.

Urban also admits receiving the letters but denies that rent was owed under the leases.

The denial is improper because the requests do not ask whether rent was owed. The requests asks whether Urbn received letters that stated rent was owed.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 26 and 27.

Request
for Admission Nos. 28 and 29

Request numbers 28 and 29 ask Urbn to admit it did not pay the amounts demanded in Urban Outfitters and Anthropologie demand letters within ten days of receiving the letters.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible as to the definition of You which is overly broad, uncertain, and includes unidentified third parties; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine.

The court overrules the objections due to lack of merit.

Urbn also responds by denying the amounts demanded were owed and admitting Urbn did not pay the amounts demanded because Urbn is contractually entitled to offset rent for the owed tenant improvement allowances.

Urbn's denial is improper because the requests do not ask

whether the amounts in the letters were owed.

Nor do the requests ask why the amounts were not paid.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 28 and 29.

Request
for Admission No. 30

Request No. 30 asks Urban to admit that Section 46 of the leases provide that Urban "may at any time transfer its interest in this LEASE and underlying fee and the assignee or transferee thereunder shall be deemed to have assumed all of the transferring LANDLORD's obligations under this LEASE and the transferring LANDLORD shall be released of all the obligations of LANDLORD under this LEASE and all liability under this LEASE accruing from and after the date of such transfer provided the transferee assumes all such obligations in writing."

Urban objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; seeking irrelevant information not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine. Urban also admits the substance of the quote is accurate but the terms "Landlord" and "Lease" are not in all caps in the leases.

The court overrules the objections for lacking merit but finds the substantive response is proper.

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 30.

Request
for Admission No. 31

Request number asks Urban to admit that Urban does not contend that Landlord's obligation to pay the tenant improvement allowances, if any, arose after September 1, 2023.

Urban objects to the request due to overbreadth,

unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible as to the definition of "You" which is overly broad, uncertain, and includes unidentified third parties; and attorney-client privilege and attorney work-production doctrine. Urbn also denies the request.

The court finds Urbn's objections lack merit and overrules them.

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 31.

Request
for Admission No. 32

Request number 32 asks Urbn to admit the federal action filed on May 30, 2023, in the U.S. District Court for the Central District of California was dismissed for lack of subject matter jurisdiction on July 2, 2025.

Urbn objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; seeking irrelevant matter not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine. Urbn also admits the request.

The court overrules the objections as lacking merit.

Therefore, the court grants in part Centennial's motion to compel further as to the Request for Admission No. 32.

Request
for Admission Nos. 33 and 34

Request number 33 asks Urbn to admit that it is currently in possession of and operating within the Anthropologies premises at the Valencia Town Center. Request number 34 seeks the same as to Urban Outfitters premises at Valencia Town Center.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible as to the definition of "You" which is overly broad, uncertain, and includes unidentified third parties; seeking irrelevant matter not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine. Urbn also admits the requests.

Because the objections lack merit, the court overrules each of them.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 33 and 34.

Request
for Admission Nos. 35 and 36

Request number 35 asks Urbn to admit it did not provide any written notice to Centennial of Urbn's intent to exercise an offset right under Section 23 of the Anthropologie lease before Urbn paying rent in August of 2024. Request number 36 asks Urbn to admit it did not provide any written notice to Centennial of Urbn's intent to exercise an offset right under Section 23 of the Urban Outfitters lease before Urbn paying rent in March of 2025.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; vague, ambiguous, and unintelligible as to the definition of "You" which is overly broad, uncertain, and includes unidentified third parties; seeking irrelevant matter not reasonably calculated to lead to discovery of admissible evidence; and attorney-client privilege and attorney work-production doctrine. Urbn also admits the requests.

The court overrules the objections as lacking merit.

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission Nos. 35 and 36.

Request

for Genuineness of Document Nos. 1, 2, and 3

Request for genuineness number 1 asks Urbn to admit the genuineness of the original Anthropologie lease by and between Valencia Town Center Venture, L.P., landlord, and Urban Outfitters West, LLC, tenant, dated January 23, 2020. Request number 2 asks Urbn to admit the genuineness of the First Anthropologie Lease Amendment by and between Valencia Town Center Venture, L.P., landlord, and Urban US Retail, LLC, successor-in-interest to Urban Outfitters West LLC, Tenant, dated August 3, 2020. Request for genuineness number 3 asks Urbn to admit the genuineness of the original Urban Outfitters lease by and between Valencia Town Center Venture, L.P., landlord, and Urban US Retail, LLC, tenant, dated October 21, 2020.

Urbn objects to the requests due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; and seeking information protected by the attorney-client privilege and the attorney work-product doctrine. Urbn also all three requests.

The court is perplexed by Urbn raising the same boilerplate objections to these and previous requests. Urbn provides no explanation for why admitting the genuineness of the documents is unduly burdensome, unreasonable, or oppressive, considering Urbn's own claims are based in part on the documents. Urbn provides no facts or statements indicating how the documents potentially seek confidential attorney-client communications or attorney reasoning, legal research, or strategy. Finally, the genuineness of these documents is relevant and necessary to determine whether there is a valid basis for the claimed breaches of contract and offsets. Thus, the court overrules all objections raised to the three documents

Therefore, the court grants in part Centennial's motion to compel further as to the Requests for Admission - Genuineness of Documents Nos. 1, 2, and 3.

Request

for Genuineness of Document No. 4

Request for genuineness number 4 asks Urbn to admit the

genuineness of the Assignment and Assumption Agreement entered into on September 1, 2023 between the original landlord, Valencia Town Center Venture, L.P., and Centennial, the current landlord.

Urbn objects to the request due to overbreadth, unreasonable, undue burden, oppression and using prefatory definitions to seek privileged documents; and seeking information protected by the attorney-client privilege and the attorney work-product doctrine. Urbn also claims it cannot admit or deny the request because it was not a party to the contract and cannot authenticate it.

The court finds that overbreadth, unreasonable, and oppressive objections have merit. Urbn was not a party to the contract and cannot determine the document's genuineness without extensive labor. For these same reasons the court finds Urbn's substantive response is also proper. Thus, the court sustains the to overbreadth, unreasonable, undue burden, and oppression objections and overrules the attorney-client privilege and attorney work-product doctrine objections.

Therefore, the court denies Centennial's motion to compel further as to the Request for Admission - Genuineness of Documents No. 4.

The court grants in part defendant/cross-complainant Centennial VTC, LLC's motion to compel further responses to its first set of requests for admission numbers 1 through 36 and requests for admission - genuineness of documents numbers 1 through 3. The motion is denied in part as to request for admission - genuineness of documents number 4.

The court orders plaintiff/cross-defendant Urbn US Retail, LLC to serve objection-free responses within ten (10) days of the issuing of this order.

As to request for admissions numbers 7 and 8, if Urbn believes these requests seek disclosure of information, documents, or communications which are protected by the attorney-client privilege or the work-product doctrine, Urbn must produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The privilege log must be produced with the further responses.

B. Sanctions

Urbn asks the court to impose \$11,000 in monetary sanctions against Centennial for failing to meet and confer and because Centennial has no justification for the instant motion. (Opp. at pp. 14:9-16:8; Declaration of Holly L.K. Heffner ¶¶ 13-14.)

The court denies Urbn's request because the moving papers indicate a meet and confer attempt by telephone and several emails. Furthermore, the court has found that many of Urbn's objections are boilerplate and lack merit.

CONCLUSION and ORDER

1. Motion

is granted in part as to defendant/cross-complainant Centennial VTC, LLC's first set of requests for admission numbers 1 through 36 and requests for admission - genuineness of documents numbers 1 through 3. Motion is denied in part as to request for admission - genuineness of documents number 4.

2. The

court orders plaintiff/cross-defendant Urbn US Retail, LLC to serve objection-free responses within ten (10) days of the issuing of this order.

3. If

Urbn believes requests for admissions number 7 and 8 seek disclosure of information, documents, or communications which are protected by the attorney-client privilege or the work-product doctrine, Urbn must produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The initial failure to provide an adequate privilege log may result in monetary sanctions, and subsequent failures to comply may result in issue or evidentiary sanctions. The privilege log must be served with the further responses.

4. Urbn's request

for sanctions is denied.

Defendant/Cross-Complainant Centennial VTC, LLC to give notice.